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JUDGMENT SHEET

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
JUDGMENT

W.P.No.21968/2010

Syed Intesar Hussain **VS.** Province of Punjab through District Collector/DOR, Pakpattan Sharif etc.

Date of hearing	:	22.09.2020
Petitioners by	:	Messrs Naveed Sheharyar Shaikh, Yasir Islam Chaudhary and Humerea Bashir Chaudhary, Advocates
Respondents by	:	Mr. Waseem Iqbal Butt, Assistant Advocate General

Ch. Muhammad Iqbal, J:- Through this single order, I intend to decide the titled writ petition alongwith Writ Petition No.21969/2010, Writ Petition No.21970/2010 & Writ Petition No.15254/2010, as common questions of law and facts are involved in these cases.

2. Through these writ petitions the petitioners have challenged the order dated 03.06.2010, passed by the Collector/District Officer Revenue, Pakpattan Sharif whereby the applications of the petitioners for purchasing the state land through private treaty were turned down, and order dated 25.08.2010, passed by the Executive District Officer (Revenue), Pakpattan Sharif whereby the appeals of the petitioners were dismissed.

3. Brief facts of the case are that the petitioners filed applications to the Collector for lease of land which was allowed and land measuring 53 Acre situated in Chak No.61/EB Tehsil

Arifwala District Pakpattan, situated within prohibited zone (land in question), was given to them on lease in the year 1960 under "Grow More Food Scheme" for the period w.e.f Rabi 1960 to Rabi 1965, as per following details:

Sr. No.	Chak No.	Name of allottee	Father's Name	Area		
				A	K	M
1	61/EB	Syed Abid Hussain	Syed Aal-e-Nabi Zaidi	12	5	12
2	61/EB	Syed Hamid Hussain	Syed Abid Hussain	13	5	0
3	61/EB	Syed Shahid Hussain	Syed Abid Hussain	14	1	8
4	61/EB	Syed Intasar Hussain	Syed Abid Hussain	12	4	3

After expiry of lease period the suit land was resumed by the District Collector, Sahiwal vide order dated 25.06.1968. The petitioners filed applications for grant of proprietary rights of the suit land which were declined on the ground that the suit land is situated within the prohibited zone i.e. municipal limits of Arifwala, whereafter the possession of the petitioners over the said land is illegal and their status is that of illegal occupants.

The petitioners filed applications for the purchase of aforementioned state land through private treaty in terms of the notification dated 06.09.1962, issued by the Colonies Department, Board of Revenue. The District Collector, Pakpattan Sharif vide order dated 25.06.1966 dismissed the said applications on the ground that the land in question is located within the prohibited zone of municipal limits of Arifwala. The petitioners challenged the said order before the Commissioner, Multan Division through appeals which were dismissed on 17.07.1969.

The petitioners then filed civil suit which was dismissed by the learned Senior Civil Judge on 22.09.1971. Feeling dissatisfied, the petitioners filed appeals which were also dismissed by the learned Additional District Judge vide judgment & decree dated 22.01.1972. The aforesaid judgments & decrees were challenged through Civil Revision Nos.417-D, 418-D, 419-D & 420-D of 1972 which were accepted by this Court on

01.07.1991, the judgments & decrees of the learned Courts below were set aside, the suits of the petitioners were decreed and direction was passed to the Collector to scrutinize the case of the petitioners strictly on merits and in accordance with the circular/notification dated 22.10.1962 issued by the Colony Department.

In post-remand proceedings, the District Collector, Pakpattan Sharif again turned down the request of the petitioners for purchase of the state land vide order dated 21.07.1999 on the ground of non-fulfillment of the conditions of the circular/notification dated 22.10.1962. This order was assailed by the petitioners in Writ Petition No.7288/1999, which was allowed, the order dated 21.07.1999, passed by the Collector was set aside and cases were remanded to the Collector/District Officer Revenue, Pakpattan Sharif with the direction to decide the matter strictly in accordance with the notification dated 22.10.1962. The District Officer Revenue, Pakpattan Sharif, vide impugned order dated 30.06.2010 once again dismissed the applications of the petitioners for purchasing the state land through private treaty and also directed the Deputy District Officer Revenue to impose *Tawan* upon the petitioners as well as to retrieve the possession of the State land from them.

Against the said order dated 30.06.2010, the petitioners filed appeals before the Executive District Officer (Revenue), Pakpattan Sharif which were dismissed on 25.08.2010. Against the said orders, the petitioners filed ROR Nos.2339, 2340 & 2341 of 2010 but subsequently withdrew the same on 17.01.2012. Hence, these writ petitions.

4. I have heard the arguments of learned counsels for the parties and have gone through the record with their able assistance.

5. The Board of Revenue, subject to the general approval of the Provincial Government, under Section 10(2) of the Colonization of Government Lands (Punjab) Act, 1912 (hereinafter referred as the "Act") issued statements of conditions/policies for grant of state land to the tenants. The Government on 23.11.1956 decided that previously unleased state land should be leased out w.e.f Rabi Crops with some terms and conditions in consonance with the stipulation of Notification No.6539-56/589-C (G) issued by Board of Revenue West Pakistan, who in continuation of the above notification, issued a Memorandum NO.6570-56/3766-C (G) dated 27.11.1956 for leasing out the state land under "Grow More Food Campaign" (hereinafter referred as the "scheme"). Another Memorandum Notification No.6688-56/4092-C(G) dated 12.12.1956 of the Board of Revenue, West Pakistan, in continuation of the foundational notification dated 27.11.1956 was issued with some terms and conditions under the scheme. In the Clause 4 of the said notification, it was decided that the lessee under the said scheme would be governed by the usual terms and conditions applicable to temporary cultivation leases. Thereafter on 08.04.1957, in continuation of the notification dated 12.12.1956, a Memorandum No.1894-57/1709-C(G) was issued by the Board of Revenue for the lease of the state under the Scheme and direction was given to the Deputy Commissioners and other Officers Incharge of state agricultural lands to submit their report regarding the condition No.4, prescribed in notification dated 23.11.1956. Again on 07.12.1957, through a Memorandum/Policy No.10032-57/5039-C(G), the Board of Revenue, West Pakistan issued some terms and conditions for giving the lease under the scheme. Condition No.V of the said terms is as under:

> *"The lease will be terminated at any time if the land is required for other public purpose without any compensation except for the crops standing on the land so acquired."*

On 08.08.1962, through a memorandum/scheme No.2805-62/2363-S(G)III, Board of Revenue, West Pakistan in continuation of the earlier notifications, including the notifications mentioned above, issued another notification for lease of land under the said scheme. Conditions No.3 and 4 of the said notification/policy are important to mention here which are reproduced as under:

> *3. The concession of sale by private treaty does not apply to leases which have terminated in Rabi 1961 or earlier whether the same lands are being cultivated by the same persons or other on temporary cultivation basis. Such lands will be included in the schedule of auction.*
>
> *4. The concession of sale by private treaty does not apply to leased area lying within 5 miles of the outer limits of a Mandi town or a municipality or within 1 mile of a railway station. Such lands will be sold in open auction and should be included in the schedule.*
>
> *(emphasis supplied)*

On 06.09.1962, in paragraph No.1 of the Memorandum No.4585-62/2974-S(G)III, the Board of Revenue, West Pakistan reaffirmed the clarification made in paragraph No.4 of the official memorandum No.2805-62/2363-S(G)III, reproduced above. The aforesaid paragraph of Memorandum dated 06.09.1962 is reproduced as under:

> *1. The clarification made in para 4 of this office memorandum No.2805-62/2363-C(G)III dated 08th August, 1962, is affirmed. The state lands situated within 5 miles radius of a municipality, Mandi town or other towns, are to be sold by auctions and the proprietary rights are not to be granted through sale by private treaty within this belt.*
>
> *(emphasis supplied)*

Thereafter through Memorandum No.8400-62/3438-C(G)III, dated 08.10.1962 Colonies Department, Government of West Pakistan, clarified regarding the land leased under the scheme, as under:

From
Mr. M. A. Bajwa, C.S.P.,
Deputy Secretary to Government, West Pakistan,
Colonies Department
To
The Deputy Commissioners:--

(1) Lahore	(2)	Sheikhupura
(3) Gujranwala	(4)	Sargodha
(5) Mianwali	(6)	Multan
(7) Muzaffargarh	(8)	Bahawalpur
(9) Bahawalnagar	(10)	R. Yar Khan
(11) Montgomery	(12)	Gujrat
(13) Lyallpur	(14)	Jhang
(15) Dera Ghazi Khan		

Subject:- **Special auction Scheme-exclusion of certain lands leased under Grow More Food Scheme**
Reference:- Board of Revenue's circular memo No.4585-62/2974-S(G)III dated 6th Sep. 1962, on the subject above.

Memorandum

The Government of West Pakistan has considered the various representations received from time to time from the Ex-Grow More Food Scheme lessees and is pleased to re-emphasize one again that Ex-Grow More Food lessees who were given lands in 1956 and whose leases expire in 1961 should not be given proprietary rights and, therefore, all those lands whose leases expire in 1961 should be included in the auction schedules.

2. The other prohibition-exclusion of lands within a radius of five miles of Mandi towns or a municipality from the scope of proprietary rights should also remain unchanged. These lands should also be included in the auction schedule.

(emphasis supplied)

On 22.10.1962, vide a Memorandum No.4826-62/4419-S(G)III the Board of Revenue, West Pakistan issued policy for sale of state land through private treaty in continuation of earlier Memorandum No.4585-62/2974-C(G)III dated 06.09.1962. On 17.10.1963, through a Memorandum No.4517-63/3607-C III, it was again clarified that those lessees whose lands fall within the certain limits of prohibited zone, in which proprietary rights cannot be granted, are not entitled to get any alternative land. For ready reference, aforesaid memorandum dated 17.10.1963 is reproduced as under:

From
Mr. Masood-ur-Rauf, C.S.P.,
Secretary (Colonies) Board of Revenue,
West Pakistan
To
All Deputy Commissioners in the former Punjab Province and former Bahawalpur State.
Subject:- **Grant of proprietary rights to the allottees of land in the chaks within the radius of 5-miles of Mandi Towns**

under the Grow More Food Scheme or Ejected Tenants Scheme

Reference:- This office endorsement No.1050/601-6817-C(G)III dated the 18th October, 1960.

Memorandum

It is clarified that those lessees, whose lands fall within the certain limits in which proprietary rights cannot be granted, are not entitled to get alternative land.

As per the revenue record, the land in question is situated within the prohibited zone since the very beginning of its lease in the year 1960 and from the perusal of the notifications mentioned above, it is very much clear that the land situated in the prohibited zone could not be sold out through any private treaty, as such, the Collector, Pakpattan Sharif as well as Executive District Officer (Revenue), Pakpattan Sharif rightly passed the impugned orders dismissing the applications of the petitioners for purchase of the state land falling in the prohibited zone under the said policy.

6. All the notifications/policies regarding the scheme, including the notifications reproduced above, are in continuation of the earlier notifications/memorandums/polices and have to be considered/read collectively and not individually. Reliance in this regard is placed on *Abdul Rahim, etc Vs. Member (Colonies), Board of Revenue, etc.* **(NLR 1989 Revenue 37)**, relevant portion whereof is reproduced as under:

34….. As regards the second contention, it appears that the instructions contained in the memorandums beginning with the memorandum dated the 10th July, 1962, and ending with the memorandum dated the 22nd October, 1962 were issued in continuation of and as supplementary to each other. As is seen above, the decision of the Government that the lands of all bona fide Grow More Food lessees "would be settled with them at a fixed price" was conveyed by the memorandum dated the 10th July, 1962. The memorandum dated the 8th August, 1962 was in continuation of the memorandum dated the 10th July, 1962, and similarly the memorandum dated the 6th September, 1962, was also in continuation of the memorandum dated the 8th August, 1962. In the same way, the memorandum dated the 22nd October, 1962 was issued with the reference to the memorandum dated the 6th September, 1962. I am, therefore, unable to agree that the memorandum

> *dated the 22nd October, 1962, had the effect of superseding the instructions contained in the earlier memoranda. The proper approach in my view is to read all these memoranda together as parts of the same Scheme. The third contention is a corollary of the first contention and in view of what has been said above, it too has no merits."*

7. As per clause-v of Memorandum dated 07.12.1957, mentioned earlier, if the leased out land is required for public purpose that should be surrendered by the lessee but in this case, the Board of Revenue decided that the suit/state land measuring 203 Kanal 03 Marla be transferred as free of cost to Prime Minister's Housing Authority, Prime Minister's Office, Islamabad for construction of housing colony, vide notification dated 30.07.1999, which is reproduced as under:

> No.2512-99/2062-CS II
> Board of Revenue, Punjab.
> Lahore, dated the 30th July, 1999.
>
> From
>
> The Board of Revenue, Punjab.
>
> To
>
> The Deputy Commissioner,
> Pakpattan.
>
> Subject:- **PRIME MINISTER'S PROGRAMME FOR ECONOMIC REVIVAL (HOUSING SECTOR) STATE LAND.**
>
> **Memorandum**
>
> Kindly refer to your letter No:233/CLY(P), dated 22-7-1999, on the subject cited above.
>
> 2. The competent authority has been pleased to approve the transfer, free of cost. Of state land measuring 203K-3M of A.D.S.II Scheme of Housing & Physical Planning Department at Arifwala District Pakpattan in favour of Prime Minister's Housing Authority, Prime Minister's Secretariat Islamabad for construction f Low Cost Housing Colonies to be established under Prime Minister's Programme for Economic Revival (Housing Sector).
>
> 3. You are therefore, requested to transfer land mentioned in para 2, free of cost in favour of Prime Minister's Housing Authority, Prime Minister's Secretariat, Islamabad for the above said purpose and confirm it through fax.

In compliance of the aforesaid notification, mutation No.4903 was incorporated in the revenue record in favour of Housing & Physical Planning Development Department for establishing the housing scheme, as mentioned above. The State land is not available for the sale through private treaty and has already been resumed in favour of the state, as such, the petitioners are duty bound to surrender the state land in terms of notification dated 07.12.1957, reproduced in preceding portion of this judgment.

8. The Hon'ble Supreme Court of Pakistan in *Haji Saeed Case* entertained an application in suo motu and constituted a committee to inquire how many lands were given by the colonies department through private treaties. In the said case, the government submitted the policies framed for the disposal of the state land through unrestricted public auction. The parameters of the said policy are reproduced as under:

> "4. Sale of State or Nazul land through open auction:- State or Nazul land shall be sold out through open auction with first right of refusal to ex-lessee subject to clearance of due amount of arrears of rent.

9. Admittedly, land in question is state land owned by the Provincial Government, whereas the petitioners are intending to purchase the state property through private treaty. An alike matter for the purchase of the State land through private treaty, came under consideration of the Hon'ble Supreme Court of Pakistan in *H.R.C. Nos.7581-P & 9059-P of 2009 (Applications of Haji Muhammad Saeed)* in which the Government of Punjab tendered a Gazette notification No.918-2013/933-CL(II) dated 26.11.2013 issued under Section 10(2) of the Colonization of Government Lands (Punjab) Act, 1912 wherein it is maintained that no provision is available in the scheme for disposal of State land through private treaty. In said policy notification it is unequivocally and clearly notified that State land should only be disposed of through unrestricted public auction. Thereafter, Government of the Punjab vide policy dated 13.09.2019 reaffirmed the non-existence of any provision for the sale of State land through private treaty. Further the Hon'ble Supreme Court of Pakistan resolved the controversy for disposal of state land in case titled as *Province of Punjab through Secretary revenue and*

others Versus District Bar Association, Khanewal and others **(2014 SCMR 1611)** as under:-

> *"9. According to the aforesaid notification sale of available State land to private individuals/ organizations on demand without open auction has been stopped for the following reasons:-*
> *'(a) At the moment, the Colonization of Government Lands (Punjab) Act, 1912, regulates the grant of State land. The tenor of the law, especially of section 10 of the Act is that State land is disposed of under a general scheme of tenancy or otherwise. The said law does not authorize the Government to dispose of State land to an individual of choice and that too, without fair competition.*
> *(b) The argument that the sale was not tainted by discrimination because there was no other applicant competing for the sale was also untenable as the land had not been put to public auction. In fact, opportunity of competition was virtually denied to everyone else.*
> *(c) In the absence of fair competition, the sale could not be construed as transparent."*

Admittedly, the land in question is a public property which cannot be doled upon any cherished person through private treaty to extend favoritism, nepotism and for undue enrichment of individuals at the resources of public, meant for ultimate welfare and betterment of people. Reliance is placed on the judgment decided by the Hon'ble Supreme Court of Pakistan in Civil Petition No.2022-L of 2010 titled as *Hafeez Akhtar Randhawa Vs Member (Colonies), Board of Revenue* which is as under:-

> *"We may also add that in re-Suo Motu Case No.10 of 2009 (2010 SCMR 885) and in a number of subsequent cases* this *Court has already held that lands, mines, minerals, gas etc. are assets which belong ultimately to the people of Pakistan and the same cannot be doled out at the whims and fancies of state functionaries. In another case titled Arshad Waheed Vs. Province of Punjab (PLD 2010 Lahore 510), the Lahore High Court has also reiterated the same view.*

This Court in a judgment cited as *Arshad Waheed Vs. Province of Punjab and others* **(PLD 2010 Lahore 510)** has elaborately dealt with such like matter and has resolved the controversy as under:

"49. The disposal or transfer of *__public property__* *without* *__public participation__* *is abuse of public trust. Public Property sold or transferred behind closed doors by public functionaries to some select few undermines the venerated role of trusteeship. Good governance is fundamentally pillared on trust and confidence of the people in the government, public institutions and more importantly in the public functionaries at the helm of the affairs. If this public trust is hemorrhaged, the entire edifice of public administration loses its credibility, which weakens governments and discredits democracy.*

50. In "Shri Sachidanand Pandey and another vs. The State of West Bengal and others", (AIR 1987 SC 1109) at p.1133, O. Chinnappa Reddy, J. after considering almost all the decisions on the subject summarized the propositions in the following terms:--

"On a consideration of the relevant cases cited at the bar the following propositions may be taken as well-established: State owned or public owned property is not to be dealt with at the absolute discretion of the executive. Certain precepts and principles have to be observed. *__Public interest is the paramount consideration.__* *One of the methods of securing the public interest, when it is considered necessary to dispose of a property, is to sell the property by public auction or by inviting tenders. Though that is the ordinary rule, it is not an invariable rule. There may be situations where there are compelling reasons necessitating departure from the rule but then the reasons for the departure must be rational and should not be suggestive of discrimination. Appearance of public justice is as important as doing justice. Nothing should be done which gives an appearance of bias, jobbery or nepotism".*

51. In "Haji T.M. Hassan Rawther v. Kerala Financial Corporation" (AIR 1988 S.C. 157) Jagannatha Shetty speaking for the Supreme Court of India said:--

"The public property owned by the State or by any instrumentality of the State should be generally sold by public auction or by inviting tenders. This Court has been insisting upon that rule, *__not only to get the highest price for the property but also to ensure fairness in the activities of the State and public authorities. They should undoubtedly act fairly. Their actions should be legitimate. Their dealings should be above board. Their transactions should be without aversion or affection. Nothing should be suggestive of discrimination. Nothing should be done by them which gives an impression of bias, favoritism or nepotism.__* *Ordinarily, these factors would be absent if the matter is brought to public auction or sale by tenders. That is why the Court repeatedly stated and reiterated that the State owned properties are required to be disposed of publicly. But that is not the only rule. As O.Chinnappa Reddy, J. observed, "that though that is the ordinary rule, it is not an invariable rule." There may be situations necessitating departure from the rule, but then such instances must be justified by compulsions and not by compromise. It must be justified by compelling reasons and not by just convenience."*

52. In "Fertilizer Corporation case", (AIR 1981 SC 344) at p.350 the Court speaking through Chandrachud, C.J., observed:

"We want to make it clear that we do not doubt the bona fides of the authorities, but as far as possible, sales of public property, when the intention is to get the best price, ought to take place publicly. The vendors are not necessarily bound to accept the highest or any

other offer, <u>but the public at least gets the satisfaction that the Government has put all its cards on the table</u>.

53. In "Ram & Shyam Company vs. State of Haryana" (1985 (3) SCC 267), it has been laid down: (vide p.277, para 12)

".....On the other hand, <u>disposal of public property partakes the character of a trust in that in its disposal there should be nothing hanky panky</u> and that it must be done at the best price so that larger revenue coming into the coffers of the State administration would serve public purpose viz. the welfare State may be able to expand its beneficent activities by the availability of larger funds. .....But where disposal is for augmentation of revenue and nothing else, the State is under an obligation to secure the best market price available in a market economy. An owner of private property need not auction it nor is he bound to dispose it of at a current market price. Factors such as personal attachment, or affinity, kinship, empathy, religious sentiment or limiting the choice to whom he may be willing to sell, may permit him to sell the property at a song and without demur. <u>A welfare State as the owner of the public property has no such freedom while disposing of the public property.</u>"

54. Reliance is placed on good authority to establish that pubic property cannot be transferred without open procedure of public advertisement, public tender and public auction, unless law provided otherwise. Malik Atta Muhammad and another v. Government of Punjab through Secretary, Local Government and Rural Development, Lahore and others (2007 SCMR 178), Mirza Muhammad Arif and others v. Chief Engineer and others (PLD 2009 LAH. 489), Muhammad Irshad and another v. Tehsil Municipal Administration through Tehsil Nazim, Lodhran and 3 others (2006 CLC 1902), Mubashir Iqbal v. Secretary, Excise and Taxation, Government of Punjab, Lahore and 5 others (PLD 2005 Lahore 728), Sardar Sultan Ahmed Khan v. Government of Punjab through Project Director, Department of Agriculture Punjab, Lahore and 4 others (2001 MLD 1013), Petrosin Products Pakistan (Pvt.) Limited vs. Federation of Pakistan through Secretary, Privatization Commission, Ministry of Finance, Government of Pakistan Islamabad and 5 others (2001 CLC 820), "Muhammad Shafique Khan v. Secretary to the Government of Punjab Local Government and Rural Department, Lahore and 2 others" (1996 CLC 2045), Administrator, Municipal Committee, Sahiwal vs. Member Colonies, Board of Revenue, Punjab, Lahore and 2 others (2007 CLC 1858), Messrs Noor Shah Filling Station (Regd.) through Manager (Administration) v. Auqaf Department through Secretary/Chief Administrator Auqaf, Punjab and 4 others (2009 CLC 1148), Shaukat Ali and others v. Government of Pakistan through Chairman, Ministry of Railways and others (PLD 1997 SC 342), Shaukat Ali vs. Secretary, Industries and Mineral Development, Government of Punjab, Lahore and 3 others (1995 MLD 123), "Syeda Shahida Tasleem v. The Province of Punjab and others" (PLD 1995 Lahore 110), "Ali Raza v Chairman, Punjab Cooperative Board for Liquidation, Lahore" (2010 YLR 356), Maqsood Khan and others v. Province of Sindh and others (2007 YLR 28). From the Indian jurisdiction reliance is placed on: Aggarwal & Modi Enterprises Pvt. Ltd. & Another V. New Delhi Municipal Council (AIR 2007 SC 3131), Chenchu Rami Reddy and another v. The Government of Andhra Pradesh and others (AIR 1986 SC 1158), State of Haryana and others v. Jage Ram and *others (AIR 1983 SC 1207), M/s. Kasturi Lal Lakshmi Reddy etc. v. The State of Jammu & Kashmir and another (AIR 1980 SC 1992), Ram and Shyam Company, v. State of Haryana and others (AIR 1985 SC 1147), Ramana Dayaram Shetty v. The International Airport Authority of India and others (AIR 1979 SC 1628), Shri Sachidanand Pandey and another v. The State of West Bengal and others (AIR 1987 SC 1109), State of U.P. v. Shiv Charan Sharma and others (AIR 1981 SC 1722), "Fertilizer Corporation v. Union of India" (AIR 1981 SC 344), and Haji T.M. Hassan Rawther vs. Kerala Financial Corporation (AIR 1988 SC 157).*

55. Disposal of Public Property without reaching out to the public is a breach of public trust and is therefore facially and ex-facie discriminatory. By giving preference to a select few amounts to treating equals unequally. This offends fundamental right of equality under article 25 of the Constitution."

(emphasis supplied)

The Hon'ble Supreme Court of Pakistan in a case titled <u>*Government of Punjab through Senior MBR etc. Vs. Irfan Hafeez*</u>, Civil Appeal No.214-L of 2014, vide order dated 18.12.2014, declared that the grant of the State land is not a bounty rather it has to be done within the parameters of the concerned scheme. In another case titled as <u>*Province of Punjab Lahore etc. Vs. Shahzada Ashraf Durrani*</u>, Civil Appeal No.574 of 2006, the Hon'ble Supreme Court of Pakistan held that the lessees shall have no right to compel for the purchase of land which is required for any public purpose.

10. So far as the arguments of learned counsel for the petitioners that this Court, while deciding the Civil Revision No.417-D/1972 and Writ Petition No.7288/1999, directed the Collector to scrutinize the case of the petitioners in accordance with the notification 22.10.1962, is concerned, the relevant portion of judgment dated 01.07.1991, passed in Civil Revision No.417-D of 1972 is reproduced as under:

"6. Applying the ratio laid down in the afore-noted order I have no hesitation in coming to the conclusion that the judgment and decree passed by both the Courts below cannot be sustained. I accordingly accept these revision petitions. The decision of the two Courts below are hereby set aside. The suits of petitioners are decreed and it is directed that the <u>Collector shall scrutinize the case of the grantees strictly on merits and in accordance with the Circular issued by the Colony Department on 22.10.1962</u>. There shall be no order as to costs."

(emphasis supplied)

Whereas while deciding Writ Petition No.7288/1999, this Court directed the Collector to only read carefully the judgment of this Court (passed in C.R.No. 417-D of 1972) and decide the matter strictly in accordance with Circular cited therein. In both the aforementioned orders, the Collector was directed to scrutinize the matter in accordance with the memorandum No.4826-62/4419-S(G)III dated 22.10.1962. Perusal of the impugned order shows that the direction of this Court in aforementioned civil revision as well as writ petition has rightly been complied with and the Collector, Pakpattan Sharif, after scrutinizing the policy instructions/notifications/memorandums, reproduced above, rightly dismissed the applications of the petitioners for purchase of the state land through private treaty.

11. Even otherwise, initially the petitioners filed all the instant writ petitions only challenging the order dated 30.06.2010, passed by the Collector, Pakpattan Sharif. The petitioners, after filing instant writ petitions before this Court, filed ROR Nos.2339, 2340 & 2341 of 2010 before the Member, Board of Revenue and challenged the order dated 30.06.2010 passed by the Collector, Pakpattan and order dated 25.08.2010, passed by the Executive District Officer (Revenue), Pakpattan Sharif but the said revisions were withdrawn by them on 17.01.2012. The operative part of order dated 17.01.2012 is reproduced as under:

> *"Learned counsel for the petitioners was asked to argue the case but instead of advancing his arguments, he got recorded his statement whereby he requested that he does not want to press and pursue these cases as per instructions of the petitioners, therefore, these cases be disposed off as withdrawn. The request is accepted and the above revision petitions are dismissed as withdrawn."*

The petitioners withdrew their revisions before the Member, Board of Revenue which means that the orders dated 30.06.2010, passed by the Collector, Pakpattan Sharif and order dated 25.08.2010, passed by the Executive District Officer (Revenue), Pakpattan Sharif have attained finality up to the Board of Revenue. The petitioners have not stated anything in this regard that when the statute has provided a right to them for filing revision before the Board of Revenue, which they assailed, but abandoned the remedy without contesting the orders passed by the lower fora, which can be termed as they were no more aggrieved of the aforesaid impugned order, as such, the impugned orders have attained finality in the eyes of law.

12. Admittedly the suit land is situated within prohibited zone since before 1960, which had already been transferred in favour of Housing & Physical Planning Development Department through mutation No.4903 for establishment of a housing scheme, as such, the same cannot be transferred to the petitioners through private treaty as the same is not available for allotment etc.

13. Learned counsel for the petitioners has failed to point out any perversity, illegality or any jurisdictional defect in the impugned orders calling for any interference by this Court in its constitutional jurisdiction.

14. For what has been discussed above, this writ petition as well as the connected writ petitions, mentioned in paragraph No.1 of this judgment, are hereby dismissed being devoid of any merits.

(Ch. Muhammad Iqbal)
Judge

Abdul Hafeez

Approved for reporting.

Judge